

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4287

By: Fugate

AS INTRODUCED

An Act relating to prisons and reformatories; providing definitions; directing the Oklahoma Department of Corrections to maintain electronic record of persons entering custody; providing required information to be collected; directing the Department to obtain same information for persons already in custody; directing the Department to transmit data to the Oklahoma State Data Center in any Federal Decennial Census year; requiring information transmitted to be confidential and in aggregated census-block redistricting datasets; directing the Center to request equivalent information from all federal correctional facilities in Oklahoma; directing the Center to prepare redistricting population data that reallocates incarcerated persons to last-known Oklahoma address; directing the Oklahoma Legislative Apportionment Commission to use adjusted data; directing all political subdivisions to use adjusted data; requiring individuals whose last-known address is in Oklahoma to be reassigned to that census geography; requiring individuals whose last-known address is outside Oklahoma to be excluded from local population totals; directing for adjusted data to be published within thirty days of receipt; stipulating that data may not be used for allocation of state or federal funding; providing for codification; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 801 of Title 57, unless there is
4 created a duplication in numbering, reads as follows:

5 As used in this act:

6 1. "Department" means the Oklahoma Department of Corrections;

7 2. "Center" means the Oklahoma State Data Center within the
8 Department of Commerce;

9 3. "Federal correctional facility" means any correctional
10 institution owned, operated, or contracted by the United States
11 government for incarceration of persons convicted of criminal
12 offenses and located within Oklahoma;

13 4. "Last known address" means the individual's most recent
14 complete residential street or physical address prior to
15 incarceration and is presumed not to be the correctional facility in
16 which the individual is confined;

17 5. "Local government district" means any district established
18 primarily for electoral purposes that is required to be
19 substantially equal in population under the Fourteenth Amendment to
20 the United States Constitution; and

21 6. "State prison" means any facility operated by or under
22 contract with the Oklahoma Department of Corrections.

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1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 802 of Title 57, unless there is
3 created a duplication in numbering, reads as follows:

4 A. The Oklahoma Department of Corrections shall maintain an
5 electronic record for each person entering custody that includes:

- 6 1. Last-known address;
- 7 2. Race, ethnicity, and whether the person is of Hispanic or
8 Latino origin; and
- 9 3. Whether the person is eighteen (18) years of age or older.

10 B. To the extent practicable, the Department shall obtain and
11 maintain the same information for persons already in custody.

12 SECTION 3. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 803 of Title 57, unless there is
14 created a duplication in numbering, reads as follows:

15 A. In any year in which the Federal Decennial Census occurs,
16 the Oklahoma Department of Corrections shall transmit to the
17 Oklahoma State Data Center:

- 18 1. A unique anonymized identifier;
 - 19 2. Facility address;
 - 20 3. Last-known address;
 - 21 4. Demographic data; and
 - 22 5. Additional data required by the Center.
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1 B. Information transmitted under this section shall be
2 confidential and only be released in aggregated census-block
3 redistricting datasets.

4 C. The Center shall request equivalent information from all
5 federal correctional facilities located in Oklahoma.

6 SECTION 4. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 804 of Title 57, unless there is
8 created a duplication in numbering, reads as follows:

9 A. The Oklahoma State Data Center shall prepare redistricting
10 population data that reallocates incarcerated persons to their last-
11 known Oklahoma address.

12 B. The Oklahoma Legislative Apportionment Commission shall use
13 the adjusted data to establish Oklahoma House of Representatives,
14 Oklahoma State Senate, and Oklahoma congressional districts.

15 C. All political subdivisions shall use the adjusted data when
16 forming any local government district based on population.

17 SECTION 5. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 805 of Title 57, unless there is
19 created a duplication in numbering, reads as follows:

20 A. If the last-known address of an incarcerated person is in
21 Oklahoma, the individual shall be reassigned to that census
22 geography.

23 B. If the address is unknown or outside Oklahoma, the
24 individual shall be excluded from local population totals.

1 C. Adjusted data shall be published within thirty (30) days of
2 receipt of federal census data.

3 D. The data may not be used for allocation of state or federal
4 funding.

5 SECTION 6. This act shall become effective November 1, 2026.

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